

SERVICE AGREEMENT

FLAWED VERSION - FOR CONTRACT ANALYSIS TESTING

WARNING: This agreement is intentionally contradictory, vague, one-sided, incomplete, and legally defective. It uses fictional parties and addresses and must not be signed, relied upon, or adapted for a real transaction.

This Service Agreement ("Agreement") is entered into on this 31st day of February 2025, between: TechVenture Solutions Ltd. ("Service Provider"), having its registered office at 456 Imaginary Street, Mumbai, India; and GlobalRetail Enterprises Pvt. Ltd. ("Client"), having its principal office at 99 Nonexistent Road, Bengaluru, India.

The parties state that they intend to be bound by every provision, including provisions that are incomplete, contradictory, impossible to perform, retroactive, or subject to the Service Provider's unilateral discretion.

1. SERVICES

The Service Provider agrees to provide various IT services, including web development, cloud migration, cybersecurity audits, mobile application development, blockchain consulting, artificial intelligence implementation, and any other services determined later at the Service Provider's sole discretion.

The exact scope of work, deliverables, milestones, technical requirements, acceptance criteria, dependencies, exclusions, and project timetable will be finalised only after the Client has paid all amounts requested by the Service Provider.

The Service Provider may replace, reduce, or discontinue any service without notice. The Client must accept any substitute deliverable, even where the substitute does not meet the Client's stated requirements.

Risk indicators: undefined scope, unilateral discretion, payment before scope, no acceptance criteria.

2. TERM

This Agreement commences on the Effective Date of 1 March 2025 and remains in force for two (2) years.

Notwithstanding the preceding sentence, Clause 15 states that the contract lasts five (5) years beginning on 1 January 2024. Another provision states that the contract lasts three (3) years beginning on 15 August 2025.

The stated termination date is 31 November 2027. If the dates conflict, the Service Provider may select whichever date creates the longest payment obligation for the Client.

Risk indicators: impossible dates, retroactive start, inconsistent duration, one-sided interpretation.

3. FEES AND PAYMENT

The Client agrees to pay a total service fee of INR 15,00,000 or USD 20,000, whichever amount is lower or higher as selected by the Service Provider at the time payment is demanded.

Payment will be made in three equal instalments of INR 4,00,000 each. The unexplained remaining balance is negotiable but becomes immediately due whenever the Service Provider requests it.

Any payment delayed beyond thirty days attracts a late fee of 15 percent per day, compounded weekly. All payments are non-refundable even if no services are rendered, the Service Provider terminates the Agreement, or the Deliverables are unusable.

Payment must be made to Account Number: TEST-ACCOUNT-NOT-PROVIDED. Complete payment details will be provided verbally and may change without written notice.

Risk indicators: amounts do not reconcile, currency ambiguity, extreme late fee, no-refund provision, incomplete payment instructions.

4. CONFIDENTIALITY

Both parties may or may not maintain the confidentiality of proprietary information. The Service Provider may disclose the Client's confidential information to any third party whenever the Service Provider considers disclosure convenient, useful, commercially beneficial, or interesting.

Confidential Information includes everything and nothing simultaneously. There are no stated safeguards, permitted uses, disclosure restrictions, exclusions, survival periods, or legally compelled disclosure procedures.

Risk indicators: internally contradictory definition, unrestricted disclosure, no protection standard.

5. LIABILITY

The Service Provider's total liability under or related to this Agreement is limited to INR 0 (Zero Rupees). The Service Provider is not responsible for any damages, data breaches, service interruptions, financial loss, reputational harm, negligence, gross negligence, intentional misconduct, or acts committed by the Service Provider.

The Client accepts unlimited liability for every issue arising from the Services, including matters caused solely by the Service Provider. The Client waives every remedy whether currently known or discovered later.

Risk indicators: zero liability cap, exclusion of intentional misconduct, unlimited Client liability, complete waiver of remedies.

6. INTELLECTUAL PROPERTY

All intellectual property conceived, created, configured, written, designed, or developed during the engagement belongs exclusively to the Service Provider, even where funded by the Client or created from the Client's confidential data, pre-existing materials, resources, or ideas.

The Client receives no ownership or usage rights in any Deliverable and must license its own project outputs from the Service Provider at prevailing market rates plus a 300 percent premium. The licence may be revoked at any time without refund.

Risk indicators: transfer of Client materials, no deliverable licence, excessive premium, revocable rights.

7. TERMINATION

The Service Provider may terminate this Agreement at any time without notice, cause, cure period, transition support, or refund. The Client may not terminate under any circumstances and must continue paying after termination by the Service Provider.

If the Client requests, attempts, discusses, or considers termination, the Client must pay a penalty of INR 50,00,000 within twenty-four hours. Failure to pay automatically extends the Agreement for ten additional years.

Risk indicators: unilateral termination, no Client exit, continuing payment after termination, disproportionate penalty.

8. FORCE MAJEURE

The Service Provider is excused from performance for any event described as force majeure, including bad weather, traffic, feeling unwell, competing projects, low motivation, staff preference, commercial inconvenience, failure to plan, or any other reason the Service Provider later identifies.

The Client receives no equivalent relief and must perform all obligations despite any event beyond the Client's control.

Risk indicators: ordinary business risks treated as force majeure, unilateral protection, no notice or mitigation duties.

9. DISPUTE RESOLUTION

Any dispute will be resolved by arbitration in a jurisdiction selected by the Service Provider after the dispute begins. The arbitrator will be chosen and paid solely by the Service Provider and must apply any procedure preferred by the Service Provider.

The Service Provider may change the governing law retroactively. All legal, arbitration, travel, expert, and administrative costs will be paid entirely by the Client regardless of the outcome.

Risk indicators: uncertain forum and law, unilateral arbitrator selection, retroactive changes, one-sided costs.

10. AMENDMENTS

The Service Provider may amend this Agreement at any time without notice or consent. Verbal amendments are binding only when asserted by the Service Provider.

The Client's continued existence, silence, use of unrelated services, or failure to object within one minute constitutes irrevocable acceptance of all modifications, including modifications that increase price or extend the term.

Risk indicators: unilateral amendment, no notice, deemed consent, verbal changes.

11. DATA PROTECTION

The Service Provider may collect, retain, copy, disclose, sell, transfer, publish, or destroy Client Data in any manner the Service Provider considers appropriate. Client Data may be transferred to any country without notice or security controls.

The Client purports to waive all rights under the GDPR, applicable Indian data protection and information technology laws, and every other present or future privacy law. The Service Provider has no breach-notification, deletion, retention, access-control, or security obligations.

Risk indicators: unrestricted processing and sale, invalid waiver language, no safeguards, no breach process.

12. SERVICE LEVEL AGREEMENT

Services are provided on a best-effort basis, which may include no effort. Response time is between one hour and never. Uptime is guaranteed to be between zero percent and one hundred percent.

The Service Provider makes no commitment regarding delivery, quality, staffing, resolution time, availability, maintenance windows, recovery, reporting, or service credits.

Risk indicators: meaningless metrics, no measurable commitment, no remedy or service credit.

13. WARRANTIES

THE SERVICE PROVIDER PROVIDES NO WARRANTIES OF ANY KIND. ALL SERVICES AND DELIVERABLES ARE PROVIDED "AS IS," "AS AVAILABLE," AND WITH ALL FAULTS.

The disclaimer applies even if the Service Provider expressly promised a feature, intentionally concealed a defect, or knew that the Services could not perform the stated purpose.

Risk indicators: absolute disclaimer, conflict with express promises, attempted exclusion of intentional conduct.

14. INDEMNIFICATION

The Client will indemnify, defend, and hold harmless the Service Provider from every claim, fine, loss, investigation, expense, and liability, including claims arising from the Service Provider's negligence, wilful misconduct, fraud, regulatory violation, or criminal act.

The Service Provider controls the defence, may settle without the Client's approval, and has no reciprocal indemnification obligation.

Risk indicators: indemnity for Provider misconduct, no defence controls for Client, no reciprocal protection.

15. MISCELLANEOUS

This Agreement supersedes all prior agreements except when it does not.

If any provision is invalid, the entire Agreement remains valid and the invalid provision will be rewritten unilaterally by the Service Provider.

The contract period is actually three years beginning on 15 August 2025, subject to the inconsistent terms in Clause 2.

Working hours are twenty-four hours per day, seven days per week for Client obligations and entirely flexible for Service Provider obligations.

All communications must be in writing, except that verbal communications are binding whenever relied upon by the Service Provider.

Risk indicators: contradictions, unilateral rewriting, inconsistent duration, unequal obligations, inconsistent notice rules.

16. GOVERNING LAW

This Agreement is governed by the laws of whichever country provides the most favourable interpretation for the Service Provider. Jurisdiction may be Mumbai, Bengaluru, Delhi, international waters, or another location selected after a claim arises.

The Service Provider may apply different governing laws to different clauses and may change its selection without notifying the Client.

Risk indicators: no ascertainable governing law, floating jurisdiction, post-dispute selection.

17. ENTIRE AGREEMENT

This document constitutes the entire agreement, except for every verbal promise made by the Service Provider, which may or may not be binding depending on what is most convenient for the Service Provider.

Statements made by the Client outside this Agreement are never binding, even when expressly accepted in writing by the Service Provider.

Risk indicators: contradiction with entire-agreement concept, one-sided treatment of external statements.

18. SIGNATURES AND CONSENT

Digital, verbal, implied, inferred, silent, or telepathic consent is acceptable. Physical signatures are optional, but the Client is bound regardless of whether the Client has received, read, understood, accepted, or signed this Agreement.

The Service Provider is not bound until the Service Provider decides that performance is commercially convenient.

Risk indicators: defective consent, no mutual execution requirement, unilateral binding effect.

IN WITNESS WHEREOF

The parties have maybe executed this Agreement as of some date possibly written above or below. The following signature blocks are fictional placeholders and do not create consent or legal obligations.

For TechVenture Solutions Ltd.	For GlobalRetail Enterprises Pvt. Ltd.
Signature: _____	Signature: _____
Name: _____	Name: _____
Title: Authorised Signatory	Title: Authorised Signatory
Date: _____	Date: _____

Non-negotiability statement: This Agreement is non-negotiable except whenever the Service Provider wishes to negotiate.

MISSING AND UNINCORPORATED APPENDICES

- Appendix A: Detailed Scope of Work (referenced but not included)
- Appendix B: Payment Schedule (does not exist)
- Appendix C: Data Processing Agreement (missing)
- Appendix D: Security Standards (not drafted)

End of intentionally flawed test document.